special tribunal'.[4] What united all these people at the time was a belief in India's diversity. This was its crowning glory. So distinctive is this trait that as recently as June 2021, tribute has been paid by the British Indian sculptor, Sir Anish Kapoor, to 'India's capacity for diversity, India's inescapable multi-layered complexity, India's refusal of singularity'.[5]

Yet today, as Amy Kazmin points out, India is set upon a path to follow 'the example of Myanmar, which is battling genocide claims at the International Court of Justice over the crackdown on the country's Muslim minority' because at the end of 2019 India 'approved new citizenship rules that redefine – a pluralistic secular democracy with a sizeable Muslim minority – as a natural homeland for Hindus and adherents of other "Indic" faiths, from which Islam is pointedly excluded'.[6] This is the first time that India has incorporated a religious criterion into its naturalization and refugee policies. It has done so by allowing any Hindu, Sikh, Jain, Buddhist, Parsee or Christian who entered India prior to December 2014 a fast-track route to citizenship, from countries such as Pakistan, Afghanistan and Bangladesh where, as minorities in a Muslim country, they faced discrimination. Muslim immigrants, including Muslim minorities such as Ahmadiyas and Shias, are excluded. While Prime Minister Modi regarded this as 'the unfinished business of the traumatic 1947 partition of the Indian sub-continent', critics see this as the renunciation of the pledge by India's founding fathers 'as a home for all faiths and signalling to India's 200m Muslims that they do not fully belong'[7] in India. This risks creating two tiers of citizenship, with one created for a privileged community and the other for a marginalized one.

If the idea is not very clever, it is not very original either. It is borrowed directly from Myanmar, which in 1982 adopted a citizenship law that recognized eight different ethnic groups as 'national races' entitled to citizenship but excluded the Rohingya Muslims, who were vilified by the Burmese as illegal immigrants from Bangladesh. To acquire citizenship, they had to show 'conclusive evidence' that prior to Independence in 1948 their ancestors had already lived in Burma. This proved impossible for many poor immigrants to prove in much the same way that it will be